

TENTATIVE RULING:

Background

Plaintiff filed, on 1/15/26, a motion to vacate dismissal and enter judgment pursuant to stipulation. Their initial motion to vacate was filed 11/20/25.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,523.03, plus costs, and less any credits for payments received.

After making some payments, the principal is \$6,148.03, and court costs are \$583.61.

The Stipulated Agreement was filed 7/21/25.

The Order on Settlement Agreement and Stipulation for Judgment, leading to dismissal, was filed on 10/21/15.

Plaintiff filed a Memo on Costs on 11/20/25, allocating total costs to filing fees and service costs.

The Motion is unopposed. There is proof of mail service to an address at Sunflower Lane, in Concord. Though Defendant never filed an Answer in this matter, the Complaint does list the same address as the one used for service of this Motion; and, the Defendant did enter into an agreement in the instant matter. Thus, the Court finds that the Defendant was on notice of the cause of action in the instant matter, and that mail service of this Motion is sufficient.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,662.19.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L25-04656

CASE NAME: CAPITAL ONE, N.A. VS. MIGUEL GONZALEZ

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 1/15/26, an amended motion to vacate dismissal and enter judgment pursuant to stipulation. This motion is untimely. Plaintiff's initial motion to vacate dismissal and enter judgment was filed on 11/20/25. The court will address the merits of the initial motion only (hereinafter, Motion).

This Motion is unopposed, and mail service was completed at the address where the Defendant was personally served with the Complaint.

Analysis

The parties entered into a CCP 664.6 agreement on 6/7/25 where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$1,813.12, plus costs, less any credits for payments received.

The Defendant made no payments.

Costs are \$583.61. A memo on costs was filed 11/20/25.

The Stipulated Agreement was filed 7/21/25.

A dismissal was entered on 7/21/25.

Plaintiff filed a Memo on Costs on 11/20/25, allocating total costs to filing fees and service costs.

The Motion is unopposed. There is proof of mail service to an address at Sunflower Lane, in Concord. Though Defendant never filed an Answer in this matter, the Complaint does list the same address as the one used for service of this Motion; and, the Defendant did enter into an agreement in the instant matter. Thus, the Court finds that the Defendant was on notice of the cause of action in the instant matter, and that mail service of this Motion is sufficient.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,396.73

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L25-05653
CASE NAME: MARCOS RAMOS VENTURA VS. BABUSHKA RUSSIAN DELI & CAFE, INC.
***HEARING ON MOTION IN RE: STRIKE DEFENDANT'S ANSWER**